

Dr. Priyanka vs Dr. Harish Kumar on 16 November, 2022

Author: Madan Gopal Vyas

Bench: Madan Gopal Vyas

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR
S.B. Civil Transfer Appl. No. 106/2022

Dr. Priyanka W/o Dr. Harish Kumar, Aged About 37 Years, D/o
Mangi Lal, B/c Kumawat, R/o At Present Flat No. A-301,
Professor Building (Block A), Govt. Medical College, Pali.
Permanent Address-House No.- 138, Manglam Greens Colony,
Near Vinayak Nagar, Kishmidesar, Nokha Road, Bhinasar,
Bikaner, 334403/ C/o Poonam Chand, Chitra Ice Factory,
Bhinasahar, Bikaner.

----Petitioner

Versus

Dr. Harish Kumar S/o Ramfal Singh, Aged About 39 Years, B/c
Prajapat, R/o Advanta Hospital, Delhi Road Near Power House
Chowk, Dev Colony, Rohtak, Haryana, 124001. House No. 459-D
Dev Colony, Rohtak, Haryana.

----Respondent

Connected With

S.B. Civil Transfer Appl. No. 215/2022

Dr Priyanka W/o Dr. Harish Kumar, Aged About 37 Years, D/o
Mangilal, By Caste Kumawat, R/o At Present Flat No. A-301,
Block-A Professor Building, Govt. Medical College, Pali.
Permanent Address- House No. 138, Manglam Greens Colony,
Kishmidesar, Bhinasar, Bikaner.

----Petitioner

Versus

Dr. Harish Kumar S/o Ramfal Singh, Aged About 39 Years, By
Caste Prajapat, R/o Advanta Hospital, Delhi Road, Near Power
House Chowk, Dev Colony, Rohtak 124001, House No. 459-D,
Dev Colony, Rohtak Haryana.

----Respondent

For Petitioner(s) : Mr. Hari Shankar Shrimali
For Respondent(s) : Mr. Muktesh Maheshwari,
Mr. Kaushal Gautam

HON'BLE MR. JUSTICE MADAN GOPAL VYAS

Judgment (2 of 5) [CTA-106/2022] Date of Judgment: 16/11/2022 Both the transfer petitions under Section 24 of the CPC have been preferred by the petitioner-wife for transferring (1) application

under Section 7, 17 & 25 of the Guardians and Wards Act bearing Case No.75/2022 (CIS No.955/2021) and (2) petition under Section 13 (1) (i-a) of Hindu Marriage Act bearing Case No. 192/2022 from the Family Court No.2 and 1, Bikaner respectively to the Family Court, Pali.

Learned counsel appearing for the petitioner submits that the marriage between the petitioner and the respondent was solemnized on 22.11.2010 at Bikaner and out of the said wedlock one son Daksh was born on 17.10.2013 at Rohtak, Haryana. Learned counsel for the petitioner further submits that the petitioner is a government employee and working as an Associate Professor and is also the Head of the Department at Government Medical College, Pali and the minor son Daksh is also residing with her. It is also submitted that the respondent is permanently residing at Rohtak, Haryana, but the present proceedings have been initiated by him at Bikaner mala fide.

Learned counsel for the petitioner submits that Section 9 (1) of the Guardians and Wards Act provides that the application with respect to the guardianship of the minor shall be made to the District Court where the minor ordinarily resides and in the present case, the minor is residing at Pali with the petitioner, and therefore, the application under Sections 7, 17 & 25 of the Guardians and Wards Act pending before the Family Court No.2, Bikaner may be transferred to the Family Court, Pali.

In so far as the petition under Section 13 (1) (i-a) of the Hindu Marriage Act is concerned, learned counsel appearing for (3 of 5) [CTA-106/2022] the petitioner submits that the petitioner is a lady and is also discharging the responsibility of being an Associate Professor at Government Medical College, Pali is unable to attend day to day proceedings at Bikaner which is 315kms away from Pali. Therefore, it is prayed that both the petitions may be transferred from Bikaner to Pali.

Per contra, learned counsel appearing for the respondent vehemently opposed the prayer made by the petitioner. It is emphatically submitted that the petitioner has preferred both the transfer petitions while concealing material facts. Learned counsel for the respondent submits that the respondent has preferred the divorce petition being HMA Case No.393/2019 before the Court of Learned Additional Principal Judge, Family Court, Rohtak, Haryana. However, the petitioner preferred a transfer petition being T.P.(C) No.40/2020 before the Hon'ble Supreme Court under Section 25 of the CPC and the said transfer petition came to be allowed vide order dated 21.01.2022 and consequently the petition under Section 13 of the Hindu Marriage Act was ordered to be transferred from the Family Court, Rohtak, Haryana to Family Court, Bikaner. This material fact has been concealed by the petitioner.

It is submitted that the petitioner is a government servant and her job is obviously transferable and at present she is discharging her duties at Pali whereas the fact of the matter remains that her permanent address is that of Bikaner. Learned counsel for the respondent further submits that as many as three cases are pending consideration at the Court of competent jurisdiction at Bikaner and the witnesses who would be appearing in the aforesaid cases would be residents of either Bikaner or (4 of 5) [CTA-106/2022] Rohtak, Haryana, therefore, if both the petitions are transferred to Pali there would be hardship to the witnesses as well.

In so far as the contention of the petition under Section 7, 17 & 25 of the Guardians and Wards Act is to be heard and decided at the place where the minor ordinarily resides as per Section 9 (1) of the Act, learned counsel for the respondent submits that, at the time of filing of the application under Section 7, 17 & 25 of the Act, the minor son was residing at Bikaner. In support of his contentions, learned counsel for the respondent relied upon the judgment of this Court delivered in the case of Smt. Uma vs. Nilaksh Dwivedi reported in (2015) 4 DNJ 1766 and in the case of Smt. Ekta Solanki vs. Johny Solanki reported in (2009) 0 Supreme (Raj.) 2372 and submits that both the transfer petitions may be dismissed.

I have heard learned counsel for the parties and perused the material available on record.

The petitioner is an Associate Professor and Head of the Department of Government Medical College, Pali and the job of the petitioner is obviously a transferable job. The petitioner is a permanent resident of Bikaner, but at present she is discharging her duties at Pali. The petition under Section 13 (1) (i-a) of the Hindu Marriage Act has been transferred from Rohtak, Haryana to Bikaner at the intervention of the Hon'ble Supreme Court vide order dated 21.01.2022. Thus, it is clear that the petition under Section 13 (1) (i-a) of Hindu Marriage Act has been transferred to Bikaner at the behest of the petitioner after 21.01.2022 and the present transfer petitions have been preferred by the petitioner on 16.05.2022 and 27.09.2022 respectively when she was transferred at Pali. The grounds narrated by the petitioner-wife as (5 of 5) [CTA-106/2022] stated above are not sufficient to transfer the case from Bikaner to Pali. The petitioner-wife is around 37 years of age and is also stated to be working as an Assistant Professor, therefore, she is not a helpless lady whose inconvenience will prevail over the inconvenience of respondent-husband. As many as three cases are pending consideration at the Court of competent jurisdiction at Bikaner wherein the witnesses are appearing not only from Bikaner, but also from Rohtak, Haryana and the petitioner is also appearing in the said cases. Even at the time of filing the application under Section 7, 17 and 25 of the Guardians and Wards Act, the minor son was also residing at Bikaner.

In the totality and facts and circumstances of the case, I do not find it to be a fit case for transferring both the petitions from Bikaner to Pali.

Accordingly, both the transfer petitions are hereby rejected. The Stay Application also stands disposed of accordingly.

(MADAN GOPAL VYAS),J 112-113 neha/-

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